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20AVCV00345 BRENNA ROMINES vs THE CITY OF LANCASTER, ET AL.,

The following are the Court's rulings on the parties' Motions in Limine ("MILs"). Because the following rulings on the motions in limine are based upon evidence known at the present time, these rulings are only tentative and may be subject to change as the evidence unfolds. (See Scott v. C.R. Bard, Inc. (2014) 231 Cal.App.4th 763.)

Plaintiff's MILs

PLAINTIFF'S MOTION IN LIMINE #1 TO EXCLUDE ALL EXPERT WITNESSES NOT NAMED IN DESIGNATION.

The Motion is GRANTED as unopposed.

PLAINTIFF'S MOTION IN LIMINE #2 TO PRECLUDE ANY EXPERT OPINIONS FROM ALL UNNAMED AND UNDESIGNATED EXPERT WITNESSES

The Motion is GRANTED as unopposed.

PLAINTIFF'S MOTION IN LIMINE #3 TO EXCLUDE ALL EVIDENCE NOT PRODUCED IN PRIOR DISCOVERY

The Motion is GRANTED as unopposed.

PLAINTIFF'S MOTION IN LIMINE #4 TO PRECLUDE EXPERT OPINIONS NOT STATED AT DEPOSITION

The Motion is GRANTED as unopposed.

PLAINTIFF'S MOTION IN LIMINE #5 TO EXCLUDE EVIDENCE OF CONSUMER COMPLAINTS

Plaintiff's position: "Defendant is likely to attempt to introduce consumer complaints submitted to NHTSA in an effort to convince the jury that the Subject Vehicle's driver's seat was susceptible to breaking notwithstanding Defendant's involvement. Any such evidence should be excluded because (1) they are hearsay; and (2) there is no evidence any one of

them, let alone all of them, arose from circumstances similar to those of this case. See *West v. Johnson & Johnson Prods., Inc.*, 174 Cal. App. 3d 831, 861 (1985) (“the consumer complaints probably embodied a good deal of hearsay;” “to demonstrate the relevance of the complaints, some description of them had to be given”). There is no indication any consumer complaint arose from a situation in which a seat was modified by a third party and then reinstalled using insufficient torque. Absent such a showing, the complaints are irrelevant.” (Motion, at 4.)

Defendant’s Position: “[T]he NHTSA complaints are being offered for a non-hearsay purpose: as evidence of the repeated filing of complaints by customers regarding a product defect from the manufacturer that mirrors the alleged defect in this case, not for the truth of the complaints themselves.” (Opposition, at 3.) See also “Valencia Dodge does not seek to engage in mini trials over the truth of the complaints themselves, but rather to show that customers across the nation were lodging complaints with a nationally regulated governmental agency about the seats in their vehicle of the same make and model failing in substantially the same way as is at issue in this case: a fracture in the mounting bracket and the failure of the manufacturer to have replacement parts available. Valencia Dodge only intends to offer evidence of the NHTSA complaints for the truth of the fact that the complaints themselves were filed, which is a non-hearsay purpose and a limiting instruction would be sufficient to address any concerns over the admissibility of the evidence .” (Opposition, at 7.)

Further Defense position: “Notably, Plaintiff’s metallurgist Expert Dr. Naresh Kar specifically cited to and attached these NHTSA complaints as Exhibit 2 to his declaration offered in support of Plaintiff’s Opposition to Johnson Controls’s Motion for Summary Judgment. (Decl. of Kar, 6:10-17 (¶ 13); Decl of KEK, ¶ 4).” (Opposition, at 6.)

RULING: GRANTED, in part. The relevance of the materials is not immediately apparent as the type of failure complained of here is different from described in the Complaints. Here, Plaintiff contends, “Plaintiff’s experts and witnesses will testify that the loose fasteners resulted from the improper reinstallation of the seat following the reupholstery work. Because the bolts were inadequately torqued, over time it caused fatigue cracking in the seat cushion frame, which ultimately fractured during the November 14, 2019, collision when it should have remained intact.” (Plaintiff’s 7/10/2026 Trial Brief, at 2.) The Court could be mistaken, but the failure mechanism here – fracture of the seat cushion frame – appears to be different than fracture in mounting brackets. Putting that aside, consumer complaints about malfunctions in mounting brackets would appear to be hearsay: they are out of court statements to prove that the seat mounting brackets were defective as manufactured by FCA (and therefore serving as alternative causation to any negligence by Defendant). Defendant’s argument that the complaints are not being used for the truth of the matter asserted, but only to show that complaints were made, does not parse. The very fact that complaints were made – and not the truth of the complaints – could be pertinent if notice were an issue in this case. For instance, if there was an issue that FCA was on notice of defects and failed to investigate the complaints, that conceivably could be relevant in an action against FCA. But this Defendant has not raised that as an issue in its Opposition, and does not otherwise explain why the making of complaints in itself is relevant to its defenses. As it is, Defendant offers no reason for admission of the complaints other than the obvious one: to prove that the mounting brackets were in fact defective. For this purpose, the complaints are used for the truth of the matter asserted and are hearsay.

The Court grants this motion in part because the Court notes that Plaintiff’s expert has relied on the complaints in other phases of the case. To the extent Plaintiff’s expert has relied on the complaints to form his opinion, the Court reserves whether he may appropriately be cross-examined by reference to those complaints.

PLAINTIFF’S MOTION IN LIMINE #6 TO PRECLUDE EXPERTS FROM READING OR REFERRING TO ARTICLES, TEXTBOOKS, TREATISES, ETC. DURING DIRECT EXAMINATION

GRANTED, as unopposed.

PLAINTIFF’S MOTION IN LIMINE #7 TO EXCLUDE EVIDENCE THAT KAITLYNN HOUGHTON CAUSED THE INCIDENT AND PLAINTIFF’S INJURIES

Plaintiff’s position: “A manufacturer, distributor, or retailer is liable in tort if a defect in the manufacture or design of its product causes injury while the product is being used in a reasonably foreseeable way. *Cronin v. J.B.E. Olson Corp.* (1972) 8 Cal.3d 121, 126-130 (Cronin). ‘Because traffic accidents are foreseeable, vehicle manufacturers must consider collision safety when

they design and build their products. Thus, whatever the cause of an accident, a vehicle's producer is liable for specific collision injuries that would not have occurred but for a manufacturing or design defect in the vehicle.' Soule v. General Motors Corp. (1994) 8 Cal.4th 548, 560." (Motion, at 3.) "Further, ordinary contributory negligence is not a defense to an action for damages based on strict liability in tort. In Horn v. General Motors Corp., *infra*, the California Supreme Court, In Banc, affirmed exclusion of evidence of Plaintiff not using her seatbelt because 'plaintiff contributory negligence was not an issue' as "ordinary contributory negligence is not a defense to an action for damages based on strict liability in tort.' Horn v. General Motors Corp. (1976) 1 Cal.3d 359, 369." (Motion, at 3-4.)

Defendant's position: "This matter is straightforward. The facts clearly indicate that the incident was caused by Kaitlynn Houghton. If the Plaintiff contends that this is strict liability case and that the causation of the accident should be withheld from the jury because they have determined it to be a strict liability case, then they are mistaken by taking on a self-serving circular argument. The cause of the accident is relevant in determining all facets of the case for both liability, causation, contributory and comparative fault. Therefore, evidence that Kaitlynn Houghton caused the incident is critical to this case." (Opposition, at 6.)

GRANTED, in part. With respect to the cause of action for strict liability, the motion is granted with the proviso that, under the authority cite by Plaintiff, Defendant is liable for damages on that cause of action only to the extent Plaintiff's "injuries that would not have occurred but for a manufacturing or design defect in the vehicle."

Soule and Horn, relied on by Plaintiff, concerned the issue of comparative fault on a strict liability, product defect theory. However, Plaintiff has asserted as well a negligence cause of action against Defendant. Plaintiff offers no authority as to why Houghton's comparative fault would not be appropriate for the jury to consider as to that cause of action. In that respect the motion is DENIED.

PLAINTIFF'S MOTION IN LIMINE #8 TO EXCLUDE EVIDENCE OF COLLATERAL SOURCE PAYMENTS

Plaintiff's position: "A defendant may not mitigate damages from collateral payments where the plaintiff has been compensated by an independent source, such as insurance, pension, continued wages or disability payments. Helfend v. Southern Cal. Rapid Transit Dist. (1970) 2 Cal.3d 1, 17-18 [84 Cal.Rptr. 173, 465 P.2d 61, 77 A.L.R.3d 398]. . . . In the present case, Plaintiff received reimbursement for medical expenses incurred as a result of the subject accident, under her automobile policy and disability benefits. These facts are squarely on point with the Hrnjak decision cited above. Allowing evidence of the insurance or disability payments would be wholly inconsistent with the collateral source rule and would be prejudicial error. See Hrnjak v. Graymar, Inc. (1971) 4 Cal.3d 725. . . ." (Motion, at 3.)

Defense position: "As set forth in Howell, it is a plaintiff's burden to prove that the medical care she received or will receive is necessary and related to the accident that is the subject of the lawsuit and whether the charge for the medical care received is reasonable. In Pebley v. Santa Clara Organics (2018) 22 Cal.App.5th 1266, 1275, the Court of Appeal recognized and emphasized that a plaintiff still has the burden to show the reasonable value of medical services provided even if he or she elects to treat outside an insurance plan. As part of this inquiry, a court must allow the parties to engage in a "wide-ranging" inquiry regarding the reasonable value of a plaintiff's medical expenses. (Id. at 1280.) The Pebley Court recognized that a defendant is allowed to present evidence to argue that the amount of medical damages should be lower than the amount billed>"

GRANTED in part, and DENIED, in part. The Motion seeks to exclude "payments from Plaintiff's insurer for reimbursement of medical expenses." (Motion, at 3.) As the Court understands the Motion, it seeks to exclude evidence that Plaintiff has been reimbursed for medical expenses. To that extent, the motion is granted. But the amount that has been paid – whether by Plaintiff or her insurer – is pertinent to the determination of damages. "A personal injury plaintiff may recover the lesser of (a) the amount paid or incurred for medical services, and (b) the reasonable value of the services." (Howell v. Hamilton Meats (2011) 52 Cal.4th 541 566; see also at 551 ("A person who undergoes necessary medical treatment for tortiously caused injuries suffers an economic loss by taking on liability for the costs of treatment. Hence, any reasonable charges for treatment the injured person has paid or, having incurred, still owes the medical provider are recoverable as economic damages.").) Furthermore, evidence of ACA and medicare rates and eligibility is admissible. Audish v. Macias (2024) 102 Cal.App.5th 740, 749 ("However, we note that it—together with the Howell decision—lends support to our conclusion that, at the very least, the

trial court did not abuse its discretion by admitting the limited evidence at issue about Audish's future eligibility for Medicare and the expected amounts Medicare might pay for Audish's recommended future medical services. Indeed, multiple courts have concluded, under similar circumstances, that it is permissible—or even necessary—for a trial court to admit evidence concerning a tort plaintiff's future eligibility for health insurance and the anticipated amounts the insurer would be expected to pay for the patient's future medical needs, evidence that is relevant to the reasonable value of future medical care.”) To the extent the motion seeks to exclude amounts paid or incurred, or to be paid or incurred, as evidence of the reasonable value of the medical services, the motion is DENIED.

PLAINTIFF'S MOTION IN LIMINE #9 TO EXCLUDE EVIDENCE OF SETTLEMENTS AND SETTLEMENT NEGOTIATIONS

GRANTED as unopposed.

PLAINTIFF'S MOTION IN LIMINE #10 TO EXCLUDE DEFENDANT FROM OFFERING ANY AND ALL EVIDENCE AND TESTIMONY FROM TOM SHUM CONCERNING THE REMOVAL, REUPHOLSTERING, AND REINSTALLATION OF THE DRIVER'S SEAT FOR THE SUBJECT 2001 GRAND CHEROKEE.

Plaintiff's position: "At the time of his deposition, Mr. Shum testified that the seat upholstery from the Subject Vehicle is not from Ultra Trim, Inc. (Shum Depo. 46:19-47:17; and 51:3-18.) Moreover, despite not being an expert, Mr. Shum further opined that the seat tags from the subject vehicle signify that the seats are from the Original Equipment Manufacturer 'OEM'. (Shum Depo. 48:6-24; 49:4-24). Importantly, Mr. Shum was not designated as a Person Most Knowledgeable/Qualified, nor was he designated as an expert by the defense. Most glaringly, Mr. Shum has no personal knowledge of the Subject Vehicle's reupholstery. In early 2002, Ultra Trim had five locations and roughly 100 employees. (Shum Depo. 34:16-24). He did not 'deal with the customer directly,' and the work was done by 'an experienced upholsterer, a seamstress, and an experienced installer.' (Shum Depo. 17:9-18:7; 22:19-23:5)." (Motion, at 3.)

Defendant's Position: Although Plaintiff's Motion in Limine reflects Plaintiff's objection to Mr. Shum's testimony on the basis that Mr. Shum does not have personal knowledge of the reupholstery of this specific vehicle, it is common knowledge that "[a]ny otherwise admissible evidence of habit or custom is admissible to prove conduct on a specified occasion in conformity with the habit or custom." CA EV Code § 1105. "[C]ustom or habit involves a consistent, semi-automatic response to a repeated situation." *Bowen v. Ryan*, 163 Cal. App. 4th 916, 926 (2008). In the context of a business, Evidence Code § 1105 accounts for routine policies and procedures and allows for evidence that a company would have acted in conformity with its policies and procedures on a given situation. Evidence of a company's custom and practice is routinely used at trial to explain situations where an otherwise knowledgeable witness may lack personal knowledge of a specific situation, but has great knowledge due to their role or position at the company as to the customs, policies and procedures. As such, this evidence is explicitly admissible under Evidence Code § 1105 and Plaintiff's deliberate choice to ignore this Evidence Code section is neither reassuring or nor does it lead to a well-supported persuasive argument." (Opposition, at 8-9.)

RULING: Largely DENIED, but GRANTED in part. As the former CEO of Ultra Trim, Mr. Shum has personal knowledge of the customs, policies, and practices of Ultra Trim, including its reupholstery and reinstallation procedures, its sourcing of materials, its use of tools, its training of technicians, and whether it affixed identification tags or markings to the fabric of seats it reupholstered. This testimony is admissible under Evidence Code Sections 702, 350, and 1105. Mr. Shum's lack of personal knowledge as to the upholstery work on the car seat at issue goes to the weight of his testimony on those topics. A section 2025.230 designation is not required for Mr. Shum to provide testimony on his personal knowledge on these topics.

But Plaintiff is correct that Mr. Shum was not designated as an expert witness. Accordingly, Mr. Shum may not testify as to whether the tags on the seat are original equipment manufacturer ("OEM") tags, or are tags applied by Johnson Controls, Inc., or otherwise his opinion as to what manufacturer's tags are on the seat. In this respect, the Motion is GRANTED.

Defendant's MILs.

No. 1; TO EXCLUDE ANY EVIDENCE, TESTIMONY, AND STATEMENTS REGARDING ANY BOLT AS "HAND-TIGHTENED".

Defendant's Position: "On more than one occasion during his deposition, both Plaintiff's Counsel, Stephen Farkas, and deponent, William R. Tighe, referred to the driver's seat bolts as being "hand-tightened" or "finger tight," as can be seen by the deposition testimony attached hereto as Exhibit A. The terms "hand-tightened," "finger-tightened," and similar synonymous terms fail to meet California's relevancy standard for several critical reasons. Most notably, these terms lack the precision necessary to provide meaningful assistance to the trier of fact in determining the actual condition of the seat installation following reupholstery. The fundamental flaw in these terms lies in their complete absence of measurable reference points..... Moreover, such terminology is misleading as Mr. William Tighe, who initially put forth the term "hand-tightened," conceded in his deposition on that he had no idea how the driver's seat bolts became under torqued ." (Motion, at 5, 7.)

Plaintiff's Position: "But these descriptive terms are merely adjectives used to accurately describe the bolts that connected Plaintiff's driver's seat to her vehicle as they were observed during a vehicle inspection. Defendant might seek to exclude the phrases "very loose" or "so loose the torque could not be measured" based on the same reasoning. There is no question the fact Plaintiff seeks to prove, i.e. that the bolts on her seat were loose when inspected, is relevant." (Opposition, at 2.)

RULING: GRANT in part DENY in part. The use of the phrase "Hand-tightened" to describe how the bolts were put on amounts to opinion testimony and is without foundation. However, the testimony is permissible, as it describes the level of torque found – "Once we realized some of the bolts were loose, then we attempted to actually measure the torque on the bolts. Some of the torques were so low that they were effectively zero. They were too low to measure And as you can see here, some were too low to measure essentially finger tight."

Defendant's No. 2: "TO EXCLUDE ANY EVIDENCE THAT DEFENDANT VALENCIA DODGE IMPROPERLY INSTALLED ANY SEAT IN THE SUBJECT VEHICLE"

Plaintiff has continued to allege that Valencia Dodge is responsible for some of her alleged injuries because Ultra Trim allegedly improperly installed the Vehicle's driver's seat after Ultra Trim reupholstered it. Plaintiff has based these allegations against Valencia Dodge, and Ultra Trim, on evidence that is less than suspect; in fact, the evidence is so speculative and so remote that it is entirely fabricated. Indeed, Plaintiff's own expert witnesses can't even confirm that the seat in the Vehicle at the time of the subject accident was the same seat Valencia Dodge sold it with. For example, the Plaintiff's designated expert witness, Weikuang Chao, who was designated to evaluate and opine "on the collision, root causes of the collision, and the mechanical and structural effects of the collision," repeatedly testified that he could not provide a complete history of the vehicle use and operation over the complete 24-year lifespan of the vehicle and thus could not determine when exactly in the Vehicle's history the subject fractured bracket actually broke. . . . Here, Plaintiff cannot provide any of their retained expert witnesses with admissible evidence about how Ultra Trim reinstalled the Vehicle's driver's seat or admissible evidence that the driver's seat in the Vehicle at the time of the accident was the same driver's seat that was reupholstered." (Motion, 3-4, 7-8.)

Plaintiff's position: "By claiming that Plaintiff 'cannot' prove improper installation or lay a foundation for related testimony, Defendant asks this Court to make an a priori factual finding that goes to the heart of liability and causation. California law is clear that motions in limine cannot be used to obtain dispositive rulings on the merits or to resolve evidentiary disputes that turn on credibility, inference, or factual determination. (R & B Auto Center, Inc. v. Farmers Group, Inc. (2006) 140 Cal.App.4th 327, 371–372; Amtower v. Photon Dynamics, Inc. (2008) 158 Cal.App.4th 1582, 1593–1595; Kinda v. Carpenter (2016) 247 Cal.App.4th 1268, 1278–1279.)." (Opposition, at 1.)

RULING: DENY. If Plaintiff seeks to introduce inadmissible evidence at trial on this, the Court will exclude it. But no specific piece of evidence has been identified, one way or the other. On that basis, the Motion is denied. (Kelly v. New West Federal Savings (1996) 49 Cal.App.4th 659.)

Defendant's Motion no. 3: TO EXCLUDE ANY EVIDENCE OF PLAINTIFF'S LOSS OF FUTURE EMPLOYMENT OPPORTUNITIES AND EARNINGS AS SPECULATIVE

Defendant's Position:

Defendant "seeks an order precluding evidence of Romines' speculative and conjectural economic damages and to prohibit Plaintiff from testifying as to loss of employment opportunities and loss of earnings. Valencia Dodge also seeks an order precluding Romines from introducing expert testimony and the Vocational Evaluation Report prepared by Romines' expert Amy Koellner on the subject of loss of employment opportunities and loss of earnings as a nurse practitioner." (Motion, at 3.)

"Ms. Romines had not completed her schooling for either a Registered Nursing degree or an advanced degree to become a nurse practitioner, any further loss of earnings is speculative as there is no guarantee that Ms. Romines would have completed her schooling or in fact worked as a nurse practitioner." (Motion, at 4.)

"A plaintiff's future earning capacity must be based on 'reasonably probable' earnings. (*Licudine v. Cedars-Sinai Medical Center* (2016) 3 Cal.App.5th 881, 887 ("*Licudine*"). In *Licudine*, the court found there was no basis for the plaintiff's damages to be calculated using an average attorney salary where the plaintiff had not even begun law school before the injury. (*Id.* at 896-97.). . . . For example, where a plaintiff had a "lifelong dream of becoming a medical doctor" but at the time of the accident, he had completed only one year of college, earning less than a "B" average, the trial court was justified in reducing the damages to a reasonable amount under the assumption that it was speculative and conjectural that he would become a doctor. (*Hasson v. Ford Motor Co.* (1982) 32 Cal.3d 388, 419; but see *Gargir v. B'Nei Akiva* (1998) 66 Cal.App.4th 1269, 1282.) The court in *Licudine* disapproved of *Gargir* as inconsistent with later California Supreme Court precedent insofar as it "also seems to suggest that enrollment in college with a special education major with the intention to attend graduate school is enough by itself to establish an earning capacity based upon a career in special education." (Motion, at 5.)

"Amy Koellner's report states, 'It is my professional opinion that Ms. Romines would have been able to secure employment as a Nurse Practitioner within 60 days of graduation, by approximately 09/01/2025 earning approximately \$69.25 per hour.'" (Ex. C, at p. 17.) Expert testimony about a "plaintiff's earning capacity must be grounded in reasonable assumptions not speculative or conjectural data." (*Atkins v. City of Los Angeles* (2017) 8 Cal.App.5th 696, 740 [internal citations omitted]; *Pacific Gas & Electric Co. v. Zuckerman* (1987) 189 Cal.App.3d 1113, 1135.) An expert opinion based on incorrect facts and surmises is not credited. (See *In re Marriage of Rives* (1982) 130 Cal.App.3d 138.)" (Motion, at 7.)

Plaintiff's Position:

"Evidence of future earning capacity is admissible if there is a reasonable basis for the jury to determine the loss, even if the plaintiff had not yet entered the anticipated occupation. (*Licudine v. Cedars-Sinai Medical Center* (2016) 3 Cal.App.5th 881, 887-888.) The law recognizes that earning capacity damages are not confined to the plaintiff's job at the time of injury but may reflect her aptitude, education, and career trajectory. (*Orozco v. WPV San Jose, LLC* (2019) 36 Cal.App.5th 375, 394; *Connolly v. Pre-Mixed Concrete Co.* (1957) 49 Cal.2d 483, 488.) Plaintiff's vocational expert, Amy Koellner, evaluated Plaintiff's academic progress, professional goals, and labor market data to assess her post-injury earning capacity. Those are proper considerations for expert analysis. Whether the jury ultimately accepts or rejects that evidence goes to its weight, not its admissibility." ((Opposition, at 2.)

"California courts have consistently distinguished between impermissible conjecture and permissible inference grounded in reasonable probability. In *Sargon*, the Court cautioned against equating 'reasonable certainty' with absolute certainty, emphasizing that '[t]he law requires only that damages be proven with reasonable certainty, not with absolute certainty.' (55 Cal.4th at 774.)" (Opposition, at 2.)

Defendant's Position on Reply:

"The subject accident occurred on November 14, 2019. By that time, Romines had not enrolled in a school that issues four-year degrees in Nursing Sciences. To suggest that she would have somehow become a nurse practitioner by September 1, 2025, can only be described as conjecture." (Reply, at 3.)

"First, before becoming a nurse practitioner ("NP"), Romines must become a registered nurse ("RN"). To become an RN, one must complete either an associate Degree in Nursing (a two-year degree) or a Bachelor of Science in Nursing (a four-year degree).¹ Because an NP requires a graduate degree, the prospective RN must complete the minimum, four-year program. Romines did not complete the requisite four-year degree prior to the subject accident despite being in school for almost six years prior to the accident. (See Decl. of KEK iso Motion in Limine #3 at ¶¶ 7-8; Ex. A at 32:17-24; Ex. B at 8:18-20.) Thus, one must assume that Romines would have graduated with the requisite four-year degree in nursing sciences. Second, after Romines became a RN, one must assume she would then have got accepted into a graduate nursing program, graduated said program, and then passed a certification exam. In other words, Romines's damages for loss of future income or earning capacity as a NP requires the speculation that Romines would first become a RN and then become an NP. California courts have already found this level of remoteness from the actual future career to be insufficient to support admitting evidence of said loss of future income. 'Where the plaintiff has not established her likely fitness for a particular career, courts have refused to look to that career in fixing earning capacity.' (Licudine v. Cedars-Sinai Medical Center (2016) 3 Cal.App.5th 881, 897.)' Without even completing the first step to become a RN to then start the career path to NP is not remotely far along in training or experience to justify future economic losses based on a particular aspired vocation. (See Atkins v. City of Los Angeles (2017) 8 Cal.App.5th 696, 739, 705.)" (Reply, at 4-5.)

RULING: DENIED in part, and DEFERRED in part. The motion seeks to exclude "all evidence and testimony of Plaintiff's loss of employment opportunities and loss of earnings." That is far too broad. Plaintiff is alleged to have been rendered paraplegic at a young age. Loss of earning capacity is a recognized element of compensatory damages, and the jury is entitled to infer such a loss from the nature of the injury without proof of prior earnings. (Licudine v. Cedars-Sinai Medical Center (2016) 3 Cal.App.5th 881, 892–893.) Plaintiff has a documented work history as an IHSS care provider. Putting aside for the moment the debate over the nurse-practitioner damages, Plaintiff generally may present evidence that the injury diminished her capacity to earn. In that the motion seeks to exclude all such evidence, it is denied

That said, the nub of the dispute is the damage estimates based on the assumption that Plaintiff would have become a nurse practitioner and generated decades of income in that position. The law is that the plaintiff must be sufficiently far along in her training or experience to make the projected vocation more than conjectural. (Atkins v. City of Los Angeles (2017) 8 Cal.App.5th 696, 738–740; Hasson v. Ford Motor Co. (1982) 32 Cal.3d 388, 419.) Expert opinion on earning capacity must be grounded in reasonable assumptions rather than speculative or conjectural data. (Atkins, supra, 8 Cal.App.5th at p. 740; Sargon Enterprises, Inc. v. University of Southern California (2012) 55 Cal.4th 747, 770–772.) Koellner's opinion that Plaintiff would have been employed as a nurse practitioner by approximately September 1, 2025, at approximately \$69.25 per hour assumes all these steps: That Plaintiff would have (1) completed her undergraduate nursing coursework, (2) obtained licensure as a registered nurse, (3) been admitted to and completed a graduate nursing program, (4) passed a certification examination, and (5) obtained employment. Each one of those steps is an achievement. There's no guarantee that any one of them happens, or happens on the schedule sketched out by Koellner.

The Court is doubtful that the record currently before it supports the admission of an opinion resting on the assumed completion of all these steps. Plaintiff submits no evidence establishing that any of these steps was reasonably probable, rather than being Plaintiff's wishes. The Opposition cites no evidence of her academic record, her rate of progress, her admission or eligibility for an RN program, or even the statistical likelihood of students in Plaintiff's position completing such a course of education, training, and accreditation. The scenario before the Court, as of now, is not far from Licudine, where a college senior who had been admitted to law school failed to establish that it was reasonably probable she would have practiced as an attorney. The Court is mindful that Licudine did not involve an exclusion of evidence, but concerned the sufficiency of evidence, but Licudine's proposition of what makes for a reliable opinion obtains.

Based on the incompleteness of the record, the Court will defer ruling on the admissibility of the nurse practitioner opinion until after an Evidence Code 402 hearing is held. The Court will discuss the scope of that hearing with the parties, but the Court anticipates taking evidence on the foundational facts supporting Koellner's nurse-practitioner opinion. These could include: Plaintiff's academic record; Plaintiff's enrollment status, and how her part-time enrollment squares with Koellner's timeline; whether Plaintiff had applied to any RN programs; any objective evidence of Plaintiff's aptitude for nursing; whether Koellner's opinion accounts for probability of admission, and other steps towards earning a \$69.25 hourly rate; and any other evidence Plaintiff wishes to present to substantiated Koellner's opinion.

This ruling does not foreclose any other estimates of lost wages Plaintiff may present, such as earnings as a registered nurse, in the health-care field generally, or earnings based on Plaintiff's work history. This of course assumes an adequate foundation is laid and such opinions have been sufficiently disclosed.

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